

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202303871	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 04/07/2023 4:00 AM	Location of Incident: 42nd Precinct stationhouse	18 Mo. SOL 10/7/2024	Precinct: 42		
Date/Time CV Reported Sun, 04/23/2023 11:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/04/2023 5:54 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Paul Naughton	10647	960998	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Gargallo	15091	955941	042 PCT
2. PO Kevin Crosby	07820	965695	042 PCT
3. PO Assad Tawil	12707	961354	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Paul Naughton	Force: Police Officer Paul Naughton used physical force against § 87(2)(b)	A . Unable to Determine
B . PO Paul Naughton	Force: Police Officer Paul Naughton used physical force against § 87(2)(b)	B . Substantiated
C . PO Paul Naughton	Discourtesy: Police Officer Paul Naughton spoke discourteously to § 87(2)(b)	C . Substantiated
D . PO Paul Naughton	Off. Language: Police Officer Paul Naughton made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	D . Substantiated
E . PO Paul Naughton	Discourtesy: Police Officer Paul Naughton spoke discourteously to § 87(2)(b)	E . Unfounded
F . PO Paul Naughton	Abuse: Police Officer Paul Naughton threatened to remove § 87(2)(b) to the hospital.	F . Substantiated
G . PO Paul Naughton	Abuse: Police Officer Paul Naughton improperly used his body-worn camera.	G . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 23, 2023, § 87(2)(b) filed the following complaint with IAB over the phone, generating IAB log § 87(2)(b). On May 4, 2023, the CCRB received this complaint from IAB.

On April 7, 2023, at approximately 4:00 a.m., § 87(2)(b) went to the 42nd Precinct stationhouse located at 830 Washington Avenue in the Bronx. § 87(2)(b) spoke with PO Paul Naughton, of the 42nd Precinct, outside of the stationhouse.

While speaking with § 87(2)(b) PO Naughton pushed her off of the steps leading up to the stationhouse (**Allegation A: Force, unable to determine**). PO Naughton then pushed § 87(2)(b) on the sidewalk about four steps away from the stationhouse (**Allegation B: Force, substantiated**).

In response to being pushed, § 87(2)(b) stated, “I am a female.” PO Naughton replied, “Act like one” (**Allegation C: Discourtesy, substantiated**) (**Allegation D: Offensive Language, substantiated**). PO Naughton allegedly told § 87(2)(b) “Get the fuck out of here” (**Allegation E: Discourtesy, unfounded**).

At one point, PO Naughton said to § 87(2)(b) “You’re acting erratic. We will get you an ambulance shortly” (**Allegation F: Abuse of Authority, substantiated**). § 87(2)(b) then left the area.

PO Naughton failed to properly activate his BWC for this incident (**Allegation G: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

No summons was issued, and no arrest was made. The investigation is in possession of four BWC videos (**BRs 01 – 04**) and three cellphone videos provided by § 87(2)(b) (**BRs 05 – 07**). The investigation is not in possession of additional video.

Findings and Recommendations

Allegation (A) Force: Police Officer Paul Naughton used physical force against § 87(2)(b)

§ 87(2)(b) (**BR 08**) stated that she went to the 42nd Precinct stationhouse because she wanted to file a report for assault and identity theft. She also stated she wanted to “pursue charges” against her former manager. She spoke with PO Naughton outside of the stationhouse, who was standing with two officers (identified by the investigation as PO Michael Gargallo and PO Assad Tawil, both of the 42nd Precinct). She recalled a fourth officer walking out of the stationhouse during the interaction but that officer went back inside shortly after (identified by the investigation as PO Kevin Crosby, of the 42nd Precinct).

PO Naughton asked § 87(2)(b) what was the report about, but she refused to explain it in front of the stationhouse, so he refused to allow her inside. PO Naughton told her that they would not allow her inside if she did not give more information. § 87(2)(b) stated that she was not comfortable explaining her situation outside and would prefer to talk inside. § 87(2)(b) walked up the steps leading into the stationhouse, but PO Naughton stepped in front of her, using his body to physically block her path. PO Naughton then grabbed her sweatshirt near her chest and took her down the stairs onto the sidewalk.

PO Naughton (**BR 09**) testified that he was working as stationhouse security that day and was covering for the T/S operator, who was on lunch, by “filtering” the people who enter the stationhouse at the time of incident. He first testified that § 87(2)(b) refused to share any details about her report, which was why he did not allow her inside. When asked if there was any protocol regarding sensitive complaints taken outside of the stationhouse, PO Naughton testified that § 87(2)(b) complaint was regarding “banking,” and did not have any “sensitive” nature. When asked how he knew what § 87(2)(b) complaint was about, as he had previously testified that she refused

to tell him, PO Naughton said that § 87(2)(b) shared some details of the nature of her complaint. When asked what details she shared with him, PO Naughton was unable to recall.

PO Naughton testified that § 87(2)(b) walked up to him, entered his “zone of safety,” and bumped into him with her belly at least twice, causing a safety concern. He was concerned for his safety because § 87(2)(b) was within reachable distance of the weapons in his utility belt. He said that he smelled alcohol on § 87(2)(b) breath when she got close to him, but he did not believe that she was so intoxicated that she needed medical attention. In response to bumping into him, PO Naughton immediately grabbed § 87(2)(b) by her shoulder area and walked her back about two paces. He could not recall if he gave any verbal commands beforehand. PO Naughton explained that he moved § 87(2)(b) away for safety reasons.

The investigation received BWC videos from PO Naughton, PO Gargallo, and PO Tawil (BRs 01 – 04), none of which comprehensively capture § 87(2)(b) initial conversation with PO Naughton. PO Gargallo’s BWC (BR 03) begins with § 87(2)(b) and PO Naughton facing each other on the stairs leading up to the 42nd Precinct Stationhouse. They are approximately two feet from each other. They are speaking to each other, but there is no audio. § 87(2)(b) is holding a cellphone with both hands near her waist. At 00:20, § 87(2)(b) leans forward slightly and her hands (still holding the phone) appear to make contact with PO Naughton near his belt area. PO Naughton immediately grabs § 87(2)(b) sweatshirt by the upper arm area and walks her down the stairs onto the sidewalk. He holds onto her sweatshirt for the length of time it takes to walk down the steps, which is about three seconds, and then releases her.

§ 87(2)(b) cellphone videos (BRs 05 – 07) are consistent with BWC.

A Threat Resistance, and Injury Report (BR 10) was prepared for this incident. The details of the incident state that § 87(2)(b) “pushes and brushes up against” PO Naughton. PO Naughton reported that he gave § 87(2)(b) multiple verbal commands to back away. PO Naughton prepared an additional TRI report and noted that he suspected § 87(2)(b) was intoxicated and that she was an Emotionally Disturbed Person.

Patrol Guide Procedure 221-01 (BR 11) states that officers may use physical force if it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain compliance from a subject to reduce or eliminate the necessity to use force. In all circumstances, any application or use of force must be reasonable under the circumstances.

BWC captured § 87(2)(b) standing within grabbable distance of PO Naughton’s utility belt and leaning into PO Naughton. § 87(2)(g)

Despite no audio, BWC confirms § 87(2)(b) did bump into PO Naughton twice, which he testified was what caused him to move her away from him. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unable to determine**.

Allegation (B) Force: Police Officer Paul Naughton used physical force against § 87(2)(b)

§ 87(2)(b) said that after moving her off of the steps, PO Naughton continued to grab onto her for over a minute and pushed her while on the sidewalk.

In PO Naughton’s BWC (BR 02), at 1:00, after moving § 87(2)(b) off of the steps and onto the sidewalk, the audio begins and PO Naughton tells § 87(2)(b) to “take a walk.” § 87(2)(b) replies,

“Don’t touch me. Back up off me.” § 87(2)(b) begins filming on her cellphone with the flash on and points the phone in PO Naughton’s face. PO Naughton says to § 87(2)(b) “You’re not going to put the phone in my face,” and tells her to “get out here.” § 87(2)(b) tells PO Naughton to, “Back up off me,” three more times. While they are arguing, PO Naughton is walking towards § 87(2)(b) while § 87(2)(b) steps backward, approximately one pace. At 1:15, PO Naughton grabs onto § 87(2)(b) left arm near her elbow and tells her to “get out of here,” again. He releases her arm for about a second, grabs her arm again, walking forward as he does so, forcing her to walk backward approximately four paces, which takes about ten seconds. He continues to tell her to “get out of here,” while she continues to tell him to get off of her. § 87(2)(b) pushes his hand off of her and tells PO Naughton to get off her.

PO Naughton testified that he pushed § 87(2)(b) a second time because she entered his “zone of safety,” a second time and was behaving erratically. He described her erratic behavior as yelling, screaming, and “getting in officer’s faces.” He could not recall what § 87(2)(b) was yelling and screaming about specifically. He also testified that § 87(2)(b) no longer had the right to be in front of the stationhouse as she had no purpose being there and was causing a disturbance by yelling and screaming. He added that there are apartment buildings around the stationhouse and § 87(2)(b) was being too loud for four in the morning. He testified that § 87(2)(b) was welcome to cross the street or go down the block, but she was no longer welcome outside of the stationhouse.

The TRI report prepared for this incident detailed that PO Naughton “guided subject down the stairs,” but did not mention a second use of force.

Patrol Guide Procedure 221-01(BR 11) states that officers may use physical force if it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain compliance from a subject to reduce or eliminate the necessity to use force. In all circumstances, any application or use of force must be reasonable under the circumstances.

§ 87(2)(g) BWC confirms that it was PO Naughton who moved towards § 87(2)(b) prior to PO Naughton pushing § 87(2)(b) away. § 87(2)(g)

It is therefore recommended that **Allegation B** be **substantiated**.

Allegation (C) Discourtesy: Police Officer Paul Naughton spoke discourteously to § 87(2)(b)

Allegation (D) Offensive Language: Police Officer Paul Naughton made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (E) Discourtesy: Police Officer Paul Naughton spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that while PO Naughton pushed her, he told her to “go and act like a woman,” and to “get the fuck out of here.”

In PO Naughton’s BWC (BR 02), at 1:30, after pushing § 87(2)(b) a second time, PO Naughton turns around and begins to walk back to the entrance to the stationhouse. § 87(2)(b) states, “Don’t touch me, because I’m a female. I’m a female.” PO Naughton responds, “Act like one.” He says this three times in a row. He is not heard telling § 87(2)(b) to “get the fuck out of here,” at any point on video.

PO Naughton testified that he said this to § 87(2)(b) to get her to behave “normally,” and as a means to deescalate the situation. He described § 87(2)(b) “abnormal” behavior as yelling and

screaming and causing a disturbance. He did not recall telling § 87(2)(b) to “get the fuck out of here.”

The Patrol Guide’s “Mission, Vision, and Values of the New York City Police Department” (BR 12) states that officers are to respect the dignity of each individual and to maintain a higher standard of integrity that is generally expected of others.

PO Naughton’s statement to “act like one” in response to § 87(2)(b) stating she was female

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unfounded**.

Allegation (F) Abuse of Authority: Police Officer Paul Naughton threatened to remove § 87(2)(b) to the hospital.

This allegation derives from BWC. In PO Naughton’s BWC, at 3:51, he says to § 87(2)(b) “We will get you an ambulance shortly. Keep going. Keep going.”

PO Naughton testified that he made that statement to warn § 87(2)(b) that if “things continued to escalate,” that she might need to be assessed by EMS. PO Naughton stated that officers are allowed to call for EMS if they believe a civilian needs to be assessed. His reasoning for considering calling EMS was that he had smelled alcohol on § 87(2)(b) breath and because she was behaving erratically. He did not believe § 87(2)(b) was so intoxicated that she needed to be assessed by EMS but testified that it contributed to his overall determination. He described § 87(2)(b) erratic behavior as yelling, screaming, and getting in multiple officers’ faces. He was unable to recall what specific statements § 87(2)(b) was yelling or screaming about. He could not recall any additional details that led him to believe that § 87(2)(b) was behaving erratically.

At no point in any officer’s BWC (BRs 01 – 04) does § 87(2)(b) make any verbal threats of violence nor does she show any indication that she is going to physically harm any officer at any point. Other than the interaction analyzed in **Allegations A and B**, § 87(2)(b) does not “get in the face,” of any officer.

In the TRI report prepared by PO Naughton, he noted that § 87(2)(b) was an Emotionally Disturbed Person and that he suspected she was intoxicated with alcohol.

Patrol Guide Procedure 221-13 (BR 13) defines an Emotionally Disturbed Person as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.

It is undisputed that § 87(2)(b) came to the stationhouse to file a complaint and that PO Naughton refused to allow her inside to file said complaint. BWC also confirms that while PO Naughton physically moved § 87(2)(b) away from the stationhouse entrance, § 87(2)(b) does not attempt to reenter the stationhouse, and at the time PO Naughton told § 87(2)(b) he would call an ambulance, § 87(2)(g)

It is therefore recommended that **Allegation F** be **substantiated**.

Allegation (G) Abuse of Authority: Police Officer Paul Naughton improperly used his body-worn camera.

PO Naughton does not activate his BWC until after he moves § 87(2)(b) down the steps.

PO Naughton testified that he activated his BWC when he did because the incident went from argumentative to a “little bit further.” He clarified that by “further,” he meant the first initial use of force.

Patrol Guide Procedure 212-123 (BR 14) mandates that officers activate their BWC prior to engaging in any police action and to record any interactions that escalate to become adversarial.

§ 87(2)(g)

It is therefore recommended that Allegation G be substantiated.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- PO Paul Naughton has been a member of service for seven years and has been named as a subject in one CCRB complaint and one allegation which was not substantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 19)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 16

Investigator: Carter Garfield SI Garfield 8/22/2023
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 08/22/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date